

25STCV35981 25STCV35981

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV35981 Hearing Date: July 14, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

SALINA RUIZ

vs.

WEST COAST PET MEMORIAL SERVICES, et al.

Case

No.: 25STCV35981

Hearing Date: July 14, 2026

Defendant's

motion to dismiss based for forum non conveniens is GRANTED.

On

12/4/2025, Plaintiff Salina Ruiz (Plaintiff) filed suit against West Coast Pet Memorial Services, Gateway Services, Inc., 4283929 Delaware LLC, and Paul Joiner, alleging: (1) sexual harassment; (2) failure to provide reasonable accommodation; (3) failure to engage in the interactive process; (4) retaliation;

and (5) failure to prevent.

On

4/13/2025, Defendant 4283929 Delaware LLC d/b/a West Coast Pet Memorial Services (Defendant) moved to dismiss or stay the action for inconvenient forum.

Discussion

Defendant

argues that Plaintiff's action must be dismissed or, alternatively, stayed on the grounds of forum non conveniens under Code of Civil Procedure (CCP) section 418.10.

A party may

move the Court to dismiss or stay an action in California on the grounds that "in the interest of substantial justice an action should be heard in a forum outside this state" and "on the grounds of inconvenient forum." (CCP §§ 410.30(a), 418.10(a)(2).)

In

support, Defendant contends that the parties' employment agreement included a forum selection clause identifying Nevada state court as the applicable forum for any disputes arising out of the agreement. (Carter Decl., ¶11; Ex. A, p. 3) ("Agreement shall in all respects be governed by, construed and enforced in accordance with the laws of the State of Nevada, without regard to principles of conflicts of law.")

"[F]orum

selection clauses are valid and may be given effect, in the court's discretion and in the absence of a showing that enforcement of such a clause would be unreasonable." (Smith, Valentino & Smith, Inc. v. Super. Ct. of Los Angeles Cnty (1976) 17 Cal. 3d 491, 496. "California favors contractual forum selection clauses so long as they are entered into freely and voluntarily, and their enforcement would not be unreasonable." (citation omitted) 'Both California and federal law presume a contractual forum selection clause is valid and place the burden on the party seeking to overturn the forum selection clause.' (citation omitted)" (Grove v. Juul Labs, Inc. (2022) 77 Cal. App. 5th 1081, 1090. "[I]f there is a mandatory forum selection clause, the test is simply whether application of the clause is unfair or unreasonable,

and the clause is usually given effect. Claims that the previously chosen forum is unfair or inconvenient are generally rejected.” (Berg v. Mtc Electronics Techs. Co. (1998) 61 Cal. App. 4th 349,358) (explaining that private and public interests are not considered in determining whether to enforce a mandatory forum selection clause).

Here,

the Court finds the forum selection clause to be reasonable, and was entered into freely and voluntarily. The Court also rejects Plaintiff’s characterization that the Agreement contains no such forum selection clause. Choice-of-Law Clause Paragraph 13 of the Gateway Agreement clearly states, “13. Applicable Law and Venue: This Agreement shall in all respects be governed by, construed and enforced in accordance with the laws of the State of Nevada, without regard to principles of conflicts of law.”

Moreover,

Defendant notes that “Nevada is also the appropriate forum for this dispute independent of the parties’ agreement. The operative events underlying Plaintiff’s claims arose in Nevada. Plaintiff resides in Nevada, was employed in Nevada, and the alleged wrongful conduct is centered in Nevada. In addition, the relevant witnesses, documents, and other sources of proof are in Nevada, including the individuals with knowledge of Plaintiff’s employment, the events giving rise to the claims, and any alleged damages.” (Motion, 5: 10-14.) Defendant further notes that Plaintiff’s only alleged California contacts were in Northern California, and none of the operative facts are alleged to have occurred in Los Angeles County.

Based

on the foregoing, Defendant’s motion to dismiss based for inconvenient forum is granted.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.